

REVISED ACCESS AGREEMENT

This Revised Access Agreement to improve the apron and driveway approaching Oakes Road and related improvements is made this 8th day of July, 2022 by and between Courtney Montgomery ("Owner") of 3800 Oakes Road, Brecksville ("Property"), and the Brecksville-Broadview Heights City School District (School District or "Licensee"), an Ohio political subdivision, for the improvement of the driveway and apron of the Owner's property, and supersedes and replaces all prior agreements subject to the following terms and conditions:

NOW, THEREFORE, and subject to the terms and conditions below, the Owner hereby grants to the District access to the Property to make the improvements as follows:

1. Improvements and Payment

The School District is adding a turn land on Oakes Road to allow for better traffic flow to its new School. As a result of the Oakes Road expansion, the angle of the Owner's driveway to Oakes Road will change. The School District, through its construction manager Shook Construction and its subcontractors, will replace the apron, portions of driveway, walkways from the house to the driveway, and the concrete step from the front door to the walkway with like kind materials, remove construction debris, grade/grass seed around the disturbed area so as to leave it in a similar or better condition than prior to the improvements. The School District will also reassemble and if malfunctioning, repair the electric dog fence previously installed on the property.

The School District will make a one-time payment of \$4,000 for any and all inconveniences or damages suffered by the Owner as a result of the construction of the new school and field house within 30 days of execution of this Agreement. The Owner may use such payment to clean the interior and exterior of her home, plant landscaping or for any other purpose permitted by law.

2. Schedule

The School District estimates that construction will take six to eight weeks. The School District will provide a schedule to the Owner prior to work beginning which will identify the day when work is to begin and relevant activities. The School District will provide Owner access to her driveway through temporary stone or other means. The School District will provide 48 hours' notice if the driveway will be inaccessible. The notice shall clearly identify the amount of time that it will be inaccessible which shall not exceed 10 hours during any 24-hour period.

3. Cost of the Work.

The District will be responsible to pay Shook and its subcontractors for the cost of all work on the Property.

4. Owner Responsibilities

The Owner is responsible to coordinate its use of the apron and driveway with the construction manager during the construction of the improvements.

5. District's Responsibilities

The District shall be responsible to construct the improvements as described in the plans and specifications developed by TDA for the property and approved by the City of Brecksville. The plans and specifications are available for the Owner to review by appointment at the construction manager's trailer adjacent to the Property.

6. Bond and Insurance

Shook has provided a Payment and Performance Bond in the form required by Ohio Revised Code Section 153.571 which is available at the School District for review.

Shook has provided insurance as described in its contract with the School District.

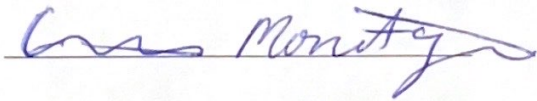
7. Governing Law/Jurisdiction

This Agreement shall be governed by, and shall be construed and enforced in accordance with, the laws of the State of Ohio. The parties agree that the state and federal courts sitting in Ohio will have exclusive jurisdiction over any claim arising out of this Agreement, and each party consents to the exclusive jurisdiction of such courts. District hereby agrees not to challenge this Governing Law and Jurisdiction provision, and further agrees not to attempt to remove any legal action outside of Cuyahoga County for any reason.

8. Any notice concerning this Agreement must be in writing and will be deemed sufficiently given when hand delivered or sent by certified or registered mail if sent to the respective addresses of each party.

The foregoing Agreement, including all of its terms and conditions, is hereby accepted.

COURTNEY MONTGOMERY



BRECKSVILLE-BROADVIEW HEIGHTS CSD

By: _____

Its: _____